



# STORMSHIELD PRO ROOFING AND CONSTRUCTION

Office: (832) 910-7735 | office@stormshieldproroofting.com

## CONTRACT CONFIRMATION

### CUSTOMER & PROJECT INFORMATION

|                     |             |                 |             |
|---------------------|-------------|-----------------|-------------|
| Customer:           | <div></div> | Cell #          | <div></div> |
| Street Address:     | <div></div> | Representative: | <div></div> |
| City / State / Zip: | <div></div> | Contract Date:  | <div></div> |
| Email Address:      | <div></div> | Build Date:     | <div></div> |

### MATERIAL & SPECIFICATIONS :

#### SHINGLES

- ☐ CERTAINTEED
- ☐ Landmark
- ☐ Landmark Pro
- ☐ Landmark Climate Flex
- ☐ Presidential Shake
- ☐ Presidential Shake TL
- ☐ Carriage House
- ☐ Belmont
- ☐ Grand Manor
- ☐ Solaris

☐ TAMKO☐ Heritage☐ Titan XT☐ StormFighter FLEX☐ HailGuard☐ Other 

#### COLORS

- ☐ Burnt Sienna / Rustic Hickory
- ☐ Georgetown / Oxford Gray
- ☐ Cobblestone Gray / Antique Slate
- ☐ Thunderstorm Gray
- ☐ Espresso / Black Walnut
- ☐ ` / Natural Timber
- ☐ Moire Black / Rustic Black
- ☐ Silver Birch / Old English Pewter
- ☐ Resewn Shake / Rustic Cedar
- ☐ Weathered Wood
- ☐ Other

#### START STRIP

- ☐ Swift Start
- ☐ Tamko Starter Strip
- Other

#### UNDERLAYMENT

- ☐ Roof Runner
- ☐ Synthetic
- ☐ Radiant Barrier
- ☐ Other

#### RIDGE

- ☐ Shadow Ridge
- ☐ Cedar Crest
- ☐ Tamko Heritage
- ☐ Tamko Heritage Designer
- ☐ Tamko Proline
- Other

#### VALLEY

- ☐ ICE &WATERSHIELD
- ☐ "W" Metal
- ☐ Valley Metal
- ☐ Other

#### DRIP EDGE

- ☐ Use Existing
- ☐ Pre-Finished Edge Material, Size\_\_\_\_
- Color Options (check one)
- Black

White

Brown

Almond

Bronze

Gray

Tan

#### VENTILATION

- ☐ Ridge Vent  LF
- ☐ Power Vents  QTY
- ☐ Solar Vents  QTY
- ☐ Static  QTY
- ☐ Turbine  QTY
- ☐ Color

#### PLUMBING STACKS

- ☐ 3in1
- ☐ 1-1/2" Lead
- ☐ 2" Lead
- ☐ 3' Lead

#### DECKING

- ☐ OSB
- ☐ PLYWOOD
- ☐ Radiant Barrier
- ☐ Other

### ADDITIONAL ITEMS:

1.
2.
3.
4.
5.
6.
7.
8.

### WARRANTY

- ☐ Standard
- ☐ 3-Star ( 20-Year Non-Prorated).
- ☐ 4-Star (50-Year Non-Prorated)
- ☐ 5-Star
- ☐ Lifetime Workmanship
- ☐ Class 3 Impact Resistance + 160mph wind + 10 Year Algae Warranty

### PAYMENT SCHEDULE IS AS FOLLOWS:

REPLACEMENT COST VALUE (RCV) TOTAL CHARGE: \$

NET CLAIM Amount Due: \$

DEDUCTIBLE Amount Due: \$

DEPRECIATION Amount Due: \$

Ask your STORMSHIELD representative about our Review Rebate

- ☐ All review have been submitted

PLEASE MAKE CHECKS PAYABLE TO: STORMSHIELD PRO ROOFING

Due to the unique nature of repairs to insurance claims, this contract does not include an explicit price because the final scope has not been agreed upon with the insurer. Reaching an agreement on the full scope of repairs involves considerable time and StormShield Roofing & Construction part; we will not proceed with this phase unless you agree to allow us to do the work once the scope is agreed upon. By signing this agreement, you authorize StormShield Roofing & Construction to reach an agreement on the price and scope of repairs on your behalf. StormShield Roofing & Construction agrees to bid the work using the primary insurance industry pricing database (Xactimate) based on the scope of work agreed upon with your insurer, including general contractor markup at customary insurance industry rates (10% overhead, 10% profit on Xactimate like items). Any substantial additions or deductions to the scope of the work will be handled by written construction change orders.

**SOMETIMES SUPPLEMENTS ARE REQUIRED ON YOUR JOB IN ORDER TO COMPLETE THE WORK:** Potential supplements include, but are not limited to (re-deck, building permit, additional ventilation, ridge cap, overhead and profit, and additional material). You understand that these supplemental items may be required by your local building official. You understand by initialing here that you agree to allow StormShield Roofing & Construction to supplement your insurance carrier for the additional funds these supplements require are payable to StormShield Roofing & Construction.

### AUTHORIZED BY:

BY EXECUTING THIS TWO-PAGE MASTER RESTORATION AGREEMENT, THE CUSTOMER ACKNOWLEDGES COMPREHENSIVE RECEIPT, REVIEW, AND UNCONDITIONAL ACCEPTANCE OF BOTH THE PRIMARY WORK ORDER SPECIFICATIONS, NOTES, FINANCIAL ALLOCATIONS (PAGE 1) AND THE TERMS & CONDITIONS LOCATED ON THE REVERSE SIDE (PAGE 2).

AUTHORIZED HOMEOWNER SIGNATURE

DATE

We hereby agree to furnish labor and materials-complete in accordance with the above specifications and in conjunction with the original contract at above state price. Please make all checks payable to StormShield Roofing and Construction. StormShield Roofing and Construction. will not be responsible for checks made payable to any other party.

STORM SHIELD PRO ROOFING & CONSTRUCTION REPRESENTATIVE

DATE

MasterContractTerms&Conditions • LegalAddendumRiders

**1. Contractual Payment Terms:** Payment is due in full to Storm Shield Pro Roofing & Construction in Houston, Texas immediately upon completion of the work. For projects extending beyond thirty (30) days on site, progress billing for materials delivered and work completed is due and payable on the tenth (10th) day of each calendar month following performance. Customer obligations remain absolute regardless of invoice receipt.

**2. Delinquency & Collection Costs:** Payments not received within five (5) calendar days of the due date are deemed in default and shall bear interest from the due date at the lesser of 15% per annum or the maximum legal rate. Customer agrees to pay all collection costs, including reasonable attorney fees and filing fees, incurred to recover delinquent balances.

**3. Structural Workspace Hazard Notice:** Roofing work involves heavy construction, tearing, and demolition, creating risks of falling debris. Customer agrees to keep guests, invitees, and occupants clear of the active work area. Storm Shield Pro is not liable for injuries to anyone entering the construction zone.

**4. Internal Structural Dust & Attic Management:** Roofing replacement generates significant vibrations and dust. Airborne particles and small debris will enter the attic space. Customer should use extreme caution when lowering attic stairs post-construction to prevent falling debris from causing facial or eye injuries.

**5. Exterior Landscaping Protections:** While crews utilize protective tarps and property safeguards, minor accidental impact to vegetation, shrubbery, or lawns may occur during tear-off. Storm Shield Pro is not responsible for minor landscaping or plant damage resulting from standard construction operations.

**6. Driveway Structural Clearance:** Customer must provide clear, unobstructed driveway access for material delivery trucks and equipment. The machinery and bundles required are extremely heavy. Storm Shield Pro is not responsible for driveway, curb, or sidewalk damage resulting from natural settling, compression, or inadequate sub-slab structural support.

**7. Hidden Rafter Flaws & Deflection:** Stripping existing roof layers frequently exposes pre-existing structural issues. Correcting structural defects, sagging framing, or warped trusses is excluded from this scope unless explicitly added. New shingles may accentuate pre-existing deck deflections, for which Storm Shield Pro bears no responsibility.

**8. Utility Routing Under Sheathing Foundations:** Standard building codes require mechanical lines, HVAC conduits, water pipes, and electrical lines to be secured a safe distance below the roof deck. Storm Shield Pro is not responsible for accidental punctures caused by fasteners striking lines improperly run flush against the underside of the wood sheathing.

**9. Shingle Surface Settlement & Thermal Variables:** Fiberglass and asphalt shingles installed during cooler temperatures require solar heat exposure to activate the thermal sealing strips. Heavier architectural or triple-lam shingles may not lay completely flat immediately. This is a natural material characteristic and does not constitute a installation defect.

**10. Wall Flashing & Exterior Siding Disruption:** Proper shingle installation requires integrating flashing with existing wall siding. Brittle, weathered, or aging siding (vinyl, wood, or stucco) immediately adjacent to flashing zones may crack, chip, or tear during detachment and re-roofing. Storm Shield Pro is not responsible for repairing or replacing such pre- existing fragile siding components.

**11. Vibration Impact on Internal Ceilings & Finishes:** Roof demolition transmits significant vibrations throughout the building framework. **Customer is strictly required to remove all mirrors, pictures, artifacts, loose light fixtures, and chandeliers from interior walls and ceilings prior to commencement.** Storm Shield Pro is not liable for damage to items falling inside or outside the property.

**12. Mechanical Satellites & Rooftop Electronics:** It may be operationally necessary to temporarily detach satellite dishes, solar devices, or antennas. Customer is responsible for scheduling and paying for recalibration or realignment. Storm Shield Pro may remove these items to facilitate the installation but holds no obligation to re-align or restore electronic signals.

**13. High Voltage Electrical Accessories:** Installation crews are not licensed electrical technicians. Customer must retain a qualified electrician to safely disconnect, reconnect, or wire powered ventilation fans or rooftop electrical systems if required during the roofing process.

**14. Unforeseen Substrate Code Supplements:** If building code inspectors require unexpected field modifications during construction (including, but not limited to, extensive rotted deck replacement, supplemental insulation, or corrected ventilation), customer authorizes Storm Shield Pro to supplement the insurance carrier for additional funds. These supplemental payments are fully payable directly to Storm Shield Pro.

**15. Exclusive Remedy & Workmanship Standards:** We warrant that our installers will perform their work in a good, workmanlike manner and that the roof area handled will remain free from leaks caused by workmanship defects for the period specified. Our liability is strictly limited to providing labor to repair the specific leaked area, which constitutes the **sole remedy available under this contract.** This labor warranty is transferable to a new owner for up to one year from property transfer or until original expiration, whichever occurs first.

**16. Manufacturer Product Warranties:** All material product warranties are issued directly by the shingle manufacturer. Storm Shield Pro will transfer all product warranties to the customer upon receipt of final contract payment in full. Customer is responsible for submitting any registration cards.

**17. Water Intrusion Assessment Deadlines:** Customer must notify Storm Shield Pro within seventy-two (72) hours of discovering any roof leak and take immediate reasonable actions to mitigate interior damage. Customer agrees to grant safe access to interior and exterior areas at reasonable times to conduct required multi-stage inspections.

**18. Environmental Mold & Hazard Mitigation Exclusion:** Customer explicitly releases Storm Shield Pro Roofing & Construction from any liability, claims, or damages regarding environmental hazards or toxic conditions, including but not limited to the growth, presence, or mitigation of mold, mildew, or airborne spores resulting from moisture or water entry, regardless of alleged negligence.

**19. Casualty Loss & Insurance Maintenance:** Storm Shield Pro is not responsible for damage caused by fire, windstorms, hail, tornadoes, hurricanes, lightning, or acts of God to work in progress or completed systems. Customer must maintain standard homeowner's casualty insurance in full force. **There are no other warranties, express or implied, including merchantability or fitness for a particular purpose, applicable to this contract.**

**20. Binding Arbitration Agreement:** Any dispute, claim, or controversy arising out of or relating to the performance of services or materials under this contract shall be settled exclusively via binding arbitration conducted in accordance with the Commercial Arbitration Rules of the American Arbitration Association (AAA). Judgment on the award may be entered in any court of competent jurisdiction in Harris County, Texas, or the county where the work was performed.

**21. Fully Integrated Execution Covenant:** This two-page contract represents the complete agreement between both parties and supersedes all prior written or oral representations. Any modifications must be executed in writing by both parties. This contract is governed by and construed under the laws of the State of Texas. If any provision is deemed unenforceable, remaining terms remain in full force.